

Mohit Tiwari v. State of U.P. — Para 6.8 objection liberty; coercive action stayed

High Court of Judicature at Allahabad · Division Bench · 1 August 2022 · WRIT - C No. - 19868 of 2022 · **Writ disposed; liberty to file Para 6.8 objection; coercive action stayed.**

HEADNOTE

A consumer challenging demand notices of the distribution licensee was relegated, without any opinion on merits, to an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005. On the licensee's statement that the objection would be decided in a time-bound manner, the Court granted four weeks to file the objection before the Executive Engineer, directed decision within the next four weeks after hearing, and stayed coercive action for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Mohit Tiwari filed a writ petition in the Allahabad High Court seeking certiorari to quash demand notices dated 13 July 2021 and 28 August 2021 issued by the power distribution corporation, amounting to Rs.24,381 plus other charges. Counsel for the distribution licensee stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

statutory objection to demand notices

HOLDING

Where a consumer challenges demand notices of the distribution licensee, the writ court may, without examining merits, grant liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer within a fixed time; if so filed, the Engineer shall decide it in accordance with law after hearing, and coercive recovery on the impugned demand may be stayed until that disposal or a short outer period. ¶ 4-5

PRINCIPLE TAGS

para-6.8-objection-alternate-remedy The writ was disposed by relegating the consumer to a Para 6.8 objection against the impugned demand notices, without any merits decision on the demand itself. ¶ 4

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The Executive Engineer was directed to decide the Para 6.8 objection within four weeks after hearing, with coercive action stayed for eight weeks or until disposal, whichever is earlier. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DEMAND NOTICES DATED 13.07.2021 AND 28.08.2021

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 4